

26CHCV00289 26CHCV00289

County: los-angeles

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DEFENDANT RONALD ALCAZAR'S MOTION TO SET ASIDE/VACATE
DEFAULT AND DEFAULT JUDGMENT

Motion filed on May 1, 2026.

MOVING PARTY: Defendant Ronald Alcazar, in propria persona

RESPONDING PARTY: None

NOTICE: OK.

RELIEF REQUESTED: Defendant Ronald Alcazar seeks an order
setting aside his default and the default judgment under Code of Civil
Procedure section 473, subdivision (b).

RULING: Granted as to Defendant Ronald Alcazar only.

BACKGROUND

Plaintiff 1102-1112 Arroyo Street LLC filed this commercial
unlawful detainer action on January 21, 2026 against Mr. Tortilla, Inc.,
Anthony Alcazar, and Ronald Alcazar.

Ronald Alcazar was personally served on January 29, 2026.

His default was entered on February 18, 2026. On March 13, 2026, the Court signed and filed a default judgment awarding Plaintiff possession and monetary relief totaling \$74,266.62. Entry of default judgment was entered on March 16, 2026.

Ronald Alcazar filed the present motion on May 1, 2026. No opposition was timely filed.

DISCUSSION

Code of Civil Procedure section 473, subdivision (b), provides that the Court “may, upon any terms as may be just, relieve a party or the party’s legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party’s mistake, inadvertence, surprise, or excusable neglect.” The application must be made within a reasonable time not exceeding six months and must be accompanied by the proposed answer or other pleading. (Code Civ. Proc., § 473, subd. (b).)

Where the moving party promptly seeks relief and the opposing party will not suffer prejudice, “very slight evidence will be required to justify a court in setting aside the default.” (Fasuyi v. Permatex, Inc. (2008) 167 Cal.App.4th 681, 695-696.)

A “mistake” justifying relief may be either a mistake of fact or a mistake of law. (H.D. Arnaiz, Ltd. v. County of San Joaquin (2002) 96 Cal.App.4th 1357, 1362.) For a mistake of fact to justify relief, the party seeking relief must have understood the facts to be other than they are (Gilio v. Campbell (1952) 114 Cal.App.2d Supp. 853), and that understanding must be excusable (Buckert v. Briggs (1971) 15 Cal.App.3d 296, 301). The mistake must be one that might have been made by a reasonably prudent person in the same circumstances. (Dingwall v. Vangas, Inc. (1963) 218 Cal.App.2d 108, 113.)

“Because the law favors disposing of cases on their merits, ‘any doubts in applying section 473 must be resolved in favor of the party seeking relief from default.’ Therefore, a trial court order denying relief is scrutinized more carefully than an order permitting trial on the merits.” (Lasalle v. Vogel (2019) 36 Cal.App.5th 127, 134-135, quoting Rappleyea v.

Campbell (1994) 8 Cal.4th 975, 980.)

Here, the motion is timely. It was filed approximately ten weeks after entry of default and approximately seven weeks after entry of the default judgment. A proposed answer is attached. (Mot., pp. 5-7.)

Ronald Alcazar admits that Defendants received the three-day notice and unlawful detainer complaint. He declares, however, that Defendants continued making payments toward the arrearages and that discussions with Plaintiff's agents indicated they could remain in possession if they brought the account current. He states that Defendants therefore believed the matter had been settled and did not understand that Plaintiff would continue prosecuting the action and seek entry of default. (Alcazar Decl., p. 4.)

Plaintiff has filed no opposition and has presented no evidence of prejudice from permitting the action to be resolved on its merits.

Considering the prompt application, the absence of demonstrated prejudice, and the policy favoring resolution on the merits, Ronald Alcazar has made a sufficient showing that his failure to respond resulted from a mistaken understanding concerning the parties' discussions and Plaintiff's continued prosecution of the action.

The motion was brought only by Ronald Alcazar. No request for relief by Anthony Alcazar or Mr. Tortilla, Inc. is properly before the Court.

CONCLUSION

Defendant Ronald Alcazar's Motion for Relief from Default and Default Judgment is GRANTED.

The default entered against Ronald Alcazar on February 18, 2026 is vacated.

The default judgment filed on March 13, 2026 and entered on March 16, 2026 is vacated as to Ronald Alcazar only.

Ronald Alcazar shall separately file and serve the proposed answer attached to the motion within five court days.

The defaults and default judgment remain in effect as to Mr.
Tortilla, Inc. and Anthony Alcazar.